

Smt Rathan K J vs Sri M S Somashekar on 25 January, 2023

Bench: Alok Aradhe, S Vishwajith Shetty

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MFA No. 8106 of 2018

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 25TH DAY OF JANUARY, 2023
PRESENT
THE HON'BLE MR JUSTICE ALOK ARADHE
AND
THE HON'BLE MR JUSTICE S VISHWAJITH SHETTY
M.F.A. NO. 8106 OF 2018 (FC)

BETWEEN:
SMT. RATHAN K.J
W/O M.S. SOMASHEKAR
D/O. LATE K.M. JAGADEESH
AGED ABOUT 36 YEARS
SIVAGANGA NILAYLA
10TH CROSS
MAHALAKSHMINAGARA
TUMKUR - 572 103.

...APPELLANT

(BY SRI HIMANAND D.C., ADV.)
AND:

Digitally signed

by B A
KRISHNA
KUMAR
Location: High
Court of
Karnataka

SRI M.S. SOMASHEKAR
S/O LATE SADASHIVAIAH,

AGED ABOUT 42 YEARS
R/AT GANESHA NILAYA

ETCM CIRCLE, KURUBARAPETE
KOLAR TOWN - 563 101.

...RESPONDENT

(BY SRI VISHNUMURTHY, ADV., - ABSENT)

THIS MFA IS FILED U/S 19(1) OF FAMILY COURTS ACT,
PRAYING AGAINST THE JUDGMENT AND DECREE DATED:28.08.2018
PASSED IN MC NO.96/2017 ON THE FILE OF THE PRL. JUDGE,
FAMILY COURT, TUMAKURU, ALLOWING THE PETITION FILED UNDER
SECTION 13(1)(ia)(ib) OF THE HINDU MARRIAGE ACT.

THIS APPEAL, COMING ON FOR HEARING, THIS DAY,
VISHWAJITH SHETTY J., DELIVERED THE FOLLOWING:

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JUDGMENT

This Miscellaneous First Appeal under Section 19(1) of the Family Courts Act, 1984, has been filed assailing the judgment and decree dated 28.08.2018 passed by the Prl. Judge, Family Court, Tumakuru, in M.C.No.96/2017, wherein the petition filed by the respondent-husband under Section 13(1)(ia) & (ib) of the Hindu Marriage Act, 1955 (for short, 'the Act') has been allowed and the marriage between the appellant and the respondent that was solemnized on 02.11.2003 has been dissolved by a decree of divorce reserving liberty to the appellant to claim maintenance from the respondent as per law.

2. Heard the learned Counsel for the appellant and also perused the material available on record.

3. Brief facts of the case leading to filing of this appeal are, the marriage of the appellant was solemnized with the respondent on 02.11.2003 at Veerashiva Kalyana Mantapa, Tumakuru. After the marriage, the appellant lived with the respondent only for a short period of about three months. In the meanwhile, she had conceived, and therefore, she came back to her parents house and gave birth to a male child. Thereafter, the respondent did not take back the appellant and the child to the matrimonial home, and therefore, the appellant was constrained to take shelter in her parents house. She, therefore, had filed a petition under Section 125 Cr.PC seeking maintenance from the respondent. The respondent in turn had filed a petition under Section 9 of the Act seeking restitution of conjugal rights. During the pendency of the petition, the dispute was settled between the parties and they had agreed for a mutual divorce, and therefore, the petition filed under Section 9 of the Act was disposed of and the parties had filed a separate petition under Section 13B of the Act seeking decree of divorce by mutual consent. It was allegedly agreed between the parties that the respondent will be paying a sum of Rs.5 lakhs to the appellant and the minor son towards permanent alimony for the purpose of their maintenance. Out of the said amount, he had only paid a sum of Rs.50,000/- to the appellant and the balance of Rs.4,50,000/- was not paid to the respondent, and therefore, the appellant had not cooperated for the purpose of disposal of the petition filed seeking divorce by mutual consent. It is under these circumstances, the said petition was dismissed.

4. Thereafter, the respondent filed the present petition under Section 13(1)(ia) & (ib) of the Act, seeking dissolution of marriage and in the said proceedings, the appellant had filed her statement of objections. To substantiate his case, the respondent had examined himself as PW-1 and got marked 12 documents as Exs.P-1 to P-12. However, the appellant did not examine any witness nor exhibited any documents in support of her case. The Family Court by the impugned judgment and decree allowed the petition filed by the respondent and dissolved the marriage between the parties that was solemnized on 02.11.2003 by a decree of divorce. Being aggrieved by the same, the appellant is before this Court.

5. Learned Counsel for the appellant submits that no proper opportunity was granted by the Family Court to the appellant to adduce evidence in support of her defence. He also submits that the respondent has not provided any maintenance to the appellant and the minor son and he was paying only a sum of Rs.2,000/- per month for the purpose of maintaining the son. He fairly submits that having regard to the fact that the parties are residing separately since 2003, no purpose would be served in continuing the marital tie between the parties and if the amount of permanent alimony as agreed by the respondent is paid to the appellant, she will be satisfied and he submits that this appeal would be restricted only with regard to the prayer for permanent alimony is concerned.

6. The material on record would go to show that prior to filing of the present petition under Section 13(1)(ia) & (ib) of the Act, the parties had filed a joint petition before the Family Court under Section 13B of the Act seeking decree of divorce by mutual consent. It is specifically submitted that the respondent had agreed to pay a sum of Rs.5 lakhs towards permanent alimony to her and out of the said agreed amount, he had paid a sum of Rs.50,000/- and the balance of Rs.4,50,000/- was not paid by him. In support of this contention, she has produced Exs.P-2 & P-3 which disclose that the respondent had paid a sum of Rs.50,000/- to the appellant through cheque drawn on State Bank of India, Kolar Branch. The said documents also disclose that the appellant has agreed to receive Rs.4,50,000/- from him. The learned Judge of the Family Court while disposing of the petition filed by the respondent-husband under Section 13(1)(ia) & (ib) of the Act has reserved liberty to the appellant herein to claim maintenance from the respondent as per law, if she requires.

7. It is trite law that whenever a marital relationship is disrupted by a decree of divorce, the courts are required to consider the case of granting permanent alimony. The Hon'ble Supreme Court in the case of RAMESH CHANDRA RAMPRATAPJI DAGA VS RAMESHWARI RAMESH CHANDRA DAGA REPORTED IN AIR 2005 SC 422 has held that when by court intervention under the Hindu Marriage Act, affectation or disruption to the marital status has come by, at that juncture, while passing the decree, it undoubtedly has the power to grant permanent alimony or maintenance, if that power is invoked at that time.

8. The Division Bench of this Court in the case of AMIT VINAY WELANGI -VS- MRS.NUPUR AMIT WELANGI - AIR 2018 KAR 156 has held that while granting a decree of divorce in favour of the husband, permanent alimony can be granted in favour of a wife even if she has not filed an application under Section 25 of the Act.

9. In the present case, undisputedly, the appellant is in custody of the minor son and she has been taking care of the education and maintenance of the said child. The respondent has been paying only a sum of Rs.2,000/- per month for the purpose of maintenance of the child. The respondent who was serving in military service has now retired and the material on record would go to show that he is now receiving pension. Under the circumstances, we are of the considered view that if the respondent is directed to pay permanent alimony of Rs.4,50,000/- to the appellant towards maintenance of the appellant and the child, the same would meet the ends of justice. Accordingly, the following order:

9. The appeal is disposed of. The respondent is directed to pay a sum of Rs.4,50,000/- to the appellant towards permanent alimony and the said amount shall be paid by him within a period of four months from the date of receipt of the copy of this judgment.

SD/-

JUDGE SD/-

JUDGE KK